

**** Fundamentals of Human Rights ****

Generated: November 17, 2025

FUNDAMENTALS OF HUMAN RIGHTS

****Date:**** November 17, 2025

Fundamentals of Human Rights

Introduction

Human rights are rights inherent to all human beings, regardless of race, sex, nationality, ethnicity, language, religion, or any other status. These rights are all interrelated, interdependent and indivisible. They are often expressed and guaranteed by law, in the forms of treaties, customary international law, general principles and other sources of international law. International human rights law lays down obligations of Governments to act in certain ways or to refrain from certain acts, in order to promote and protect human rights and fundamental freedoms of individuals or groups.

The Constitution of India - Part III: Fundamental Rights

A significant example of the codification of human rights can be found in Part III of the Constitution of India, which deals with Fundamental Rights.

Definition of "the State"

Article 12 of the Constitution defines "the State" to include:

- * The Government and Parliament of India
- * The Government and the Legislature of each of the States
- * All local or other authorities within the territory of India or under the control of the Government of India

This broad definition is crucial as it makes all these bodies responsible for upholding the Fundamental Rights of the citizens.

Challenges and Interpretations

Selective Interpretation

There have been concerns raised about the "selective interpretation" of human rights. This is a situation where human rights are invoked or ignored depending on the convenience of the situation or the parties involved. This can lead to a dilution of the importance and universality of human rights.

Constitutional Amendments and Fundamental Rights

There is an ongoing debate about the extent to which Fundamental Rights can be amended. The general consensus, as established by the judiciary in India, is that the basic structure of the Constitution, which includes the essence of the Fundamental Rights, cannot be altered by a constitutional amendment.

Conclusion

The fundamentals of human rights are a cornerstone of modern democracy. Their inclusion in national constitutions, like in the case of India, provides a legal framework for their protection. However, the effective realization of these rights depends on their sincere implementation, consistent interpretation, and the vigilance of the citizenry.

--- *Generated by SME Document Export Tool*

Generated by SME Assistant